Tentative Rulings
August 31, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (https://www.sb-court.org/divisions/civil/civil-tentative-rulings) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

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13. *Kingsley v. Volkswagen Group of America, Inc., et al,* Case No. CIVSB2612209
Defendant Audi Ontario's Demurrer
8/31/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **OVERRULE**. Defendant will file a responsive pleading within thirty (30) days.

Case Summary

This is a lemon law case. On or about November 8, 2025, Plaintiffs leased the subject vehicle. They assert that the vehicle included express and implied warranties. However, they assert that there were defects and nonconformities to the warranty that manifested during the warranty period. They assert that they are entitled to repair, replacement, or reimbursement but that Defendant was unable to repair despite a reasonable number of attempts and have failed to replace or reimburse. As such, they filed suit on April 23, 2026, asserting causes for(1) violation of the *Song-Beverly Act* – Breach of Express Warranty (against VW) and (2) negligent repair (against Audi Ontario).

Analysis

Here, Defendant demurs to the second cause of action for negligent repair on the basis that the cause is insufficiently pleaded and, alternatively, the cause is barred by the economic loss rule.

For a claim of negligent repair, the traditional negligence elements apply:(1) legal duty; (2) breach of the legal duty; (3) causation; and (4) damages. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) A person who undertakes the repair of a product owes a duty to do so without negligence. (Civ. Code, § 1796.5.)

Pleading Sufficiency – The Complaint alleges Plaintiff delivered the subject vehicle to Audi Ontario for repair during the express warranty period for a warranted defect. Audi Ontario owed a duty to Plaintiff to use ordinary care and skill in storage, preparation, and repair of the vehicle. Plaintiff alleges Audi Ontario breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the vehicle in accordance with industry standards. Thus, Plaintiff asserts that Audi Ontario's negligent breach of its duties owed to Plaintiff was a proximate cause of Plaintiff's damages. (Compl. ¶¶ 29-32.)

Under these allegations, the allegations plead duty, breach, causation, and damages. Although particulars are not alleged of what damages were incurred, Plaintiff is not required to plead negligence with any particularity. (*Hoyem v. Manhattan Beach City Sch. Dist.* (1978) 22 Cal.3d 508, 513.) He is obligated to plead only the ultimate facts. (Code Civ. Proc., § 425.10; *Doheny Park Terrace Homeowners Assn, Inc. v. Truck Insurance Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Plaintiff has done that.

Economic Loss Rule – Audio Ontario argues that Plaintiff fails to allege that he sustained any personal injuries because of Audio Ontario's alleged negligence repair, or that the subject vehicle sustained any property damage. Therefore, Audio Ontario concludes that since Plaintiff's damages are limited to economic loss, and the economic loss doctrine precludes recovery on product liability theory. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.)

Further Audi Ontario's citation to Food Safety Net Services v. Eco Safe Systems USA, Inc. (2012) 209 Cal.App.4th 1118, 1130 and that case's quotation from Robinson Helicopter, supra, 34 Cal.4th 979 that "[W]here a purchaser's expectations … are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only 'economic' losses." However, Plaintiff did not allege that he bought the Subject Vehicle from Audi Ontario. Plaintiff is also not suing Audi Ontario because of the existence of any warrantable defect in the Subject Vehicle. Additionally, the cited portions of Food Safety Net and Robinson Helicopter address whether the economic loss rule bars claims for fraud during the performance of a contract. Here, Plaintiff has not alleged either fraud or the existence of a contract between himself and Audi Ontario.

In opposing, Plaintiff argues that the economic loss rule does not bar a negligence claim where the defendant's liability is premised on the negligence performance of a service in breach of a duty imposed by law. Moreover, Plaintiff asserts that in *Robinson Helicopter*, the California Supreme Court made clear that the economic loss rule does not preclude tort claims where the defendant's conduct violates a duty independent of the parties' contractual obligations. (*Robinson Helicopter, supra*, 34 Cal.4th at pp. 988-991.)

Here, the allegations speak of no specific defects and of Audi Ontario's negligent repairs causing damages but no specifics of the damages resulting to conclude the purported negligent repair of a component did not cause damage to the vehicle as a whole to then fall outside the economic loss rule or to another part of the vehicle where it may or may not fall within the economic loss rule. Although generic, Audi Ontario offers no applicable authority that Plaintiff must specifically identify the damages suffered because of its negligence. Furthermore, "[u]nder a general allegation of damages, a plaintiff may prove and recover those damages which naturally and necessarily result from the act complained of." (*Armstrong v. Adams* (1929) 102 Cal.App.677, 682; *Armstrong v. Ford* (1939) 30 Cal.App.2d 347, 353.) Thus, here, it is not clear from the face of the pleading that the economic loss rule applies.

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14. *Safai v. Albertsons Companies, Inc., et al,* Case No. CIVSB2507989
Motion for Leave to File First Amended Complaint
8/31/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT**. Plaintiff will file the First Amended Complaint (FAC) within twenty (20) days of this order.

Case Summary

This is a slip-and-fall case. Plaintiff alleges that Defendants owned, leased, maintained, controlled, managed, possessed, or otherwise operated the at-issue property. On October 24, 2023, Plaintiff alleges she was on the at-issue property when she slipped and fell on a foreign substances on the floor. The fall resulted in injury. She alleges that the condition was caused by Defendants or their employees and existed for sufficient time that Defendants should have noticed and either warned or remedied the condition prior to Plaintiff's encounter. As such she filed suit on September 23, 2025, alleging (1) premises liability and (2) general negligence.

Summary of the Law

A motion for leave to amend is directed to the sound discretion of the Court. (Code Civ. Proc., § 473(a)(1).) Policy favors resolution on the merits; thus, the court will usually liberally grant leave to amend a pleading. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) If a motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error, but an abuse of discretion. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Procedurally, a motion to amend a pleading must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) Additionally, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Rules of Court, rule 3.1324(b).)

Analysis

Here, Plaintiff seeks leave to amend to add a request for punitive damages, which she argues is supported since Defendant knew its ice-stocking operations were likely to create a dangerous condition on its floor; knew customers could be injured if they encountered it; and nevertheless chose not to require precautions needed to prevent the concern. She further contends that she acted reasonably and diligently in seeking leave to amend only after conducting discovery and gathering evidence to support the proposed amendment. Finally, Plaintiff contends that Defendant will suffer no prejudice from the proposed amendment since no trial date has yet been set, and Defendant has ample time to conduct any additional discovery.

A party may obtain punitive damages where she proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code §3294, subds. (a) & (c).) The necessary facts can be stated as ultimate facts or conclusions of law, as long as they are read in context with the other facts alleged as to the defendant's conduct to "adequately plead the evil motive requisite to recover[] . . . punitive damages." (*Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 510.)

Here, the proposed FAC alleges facts including that Defendant knew that the presence of water on Defendant's polished concrete floor created a dangerous slip-and-fall hazard for customers walking through the store but chose not to adopt, implement, train, supervise, or enforce policies and procedures requiring employees who stocked ice to inspect the surrounding floor while stocking was carried out and after stocking was completed to determine whether ice or water had reached the floor. Plaintiff alleges Defendant also chose not to require employees to place warning signs, cones, or other warnings in the area of the incident during the ice stocking process; chose not to require employees to temporarily restrict, block, or cordon off the area surrounding the ice freezer while large pallets of ice were being moved, handled, and stocked in an area open to customers; and chose to place a floor mat in front of the ice freezer that did not extend far enough to cover the surrounding area where pallets of ice were moved, handled, and stocked, and where it was foreseeable that water would reach the floor. Further, Plaintiff pleads in the proposed FAC that Defendant's officers, directors, or managing agents had advance knowledge of, authorized, adopted, approved, or ratified the policies, practices, customs, and omissions alleged. Based on the foregoing, it appears the FAC states facts that are sufficient to support a claim for punitive damages. (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230.)

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15. *Cervantes v. Aldama, et al,* Case No. CIVSB2619697
Plaintiffs' Motion to Expunge Pendency of Action
8/31/26, 9:00 a.m., Dept. S-17

Tentative Rulings

<u>*As to Requests for Judicial Notice:*</u> The Court would **GRANT** notice of the 2024 quitclaim deed. (Aldama Decl., Exh. A.) However, the Court would **DENY** the request for notice of the title report.

<u>*As to Objections:*</u> The Court would **SUSTAIN** the objection to Defendant's evidence offered on reply.

<u>*As to the Motion:*</u> The Court would **GRANT**.

Case Summary

In this case, Plaintiff alleges he purchased the subject property in 2025 using his own money but using the name and credit of Defendant's late husband. (Compl., ¶11.) Thus, Plaintiff alleges that the property was held in an informal trust in the name of Defendant's late husband for the purpose of maintaining it for Plaintiff's benefit. However, Defendant's late husband subsequently transferred the property to himself and Defendant. Following his passing, Defendant listed the property for sale. As such, Plaintiff filed suit on June 30, 2026, alleging (1) quiet title; (2) slander of title; (3) cancellation of instrument; (4) constructive trust; (5) declaratory relief; and (6) injunctive relief.

Statement of Law

A party who asserts a real property claim may record a notice of pendency – or a *lis pendens* – in which that real property claim is alleged. (Code Civ. Proc., § 405.20.) A real property claim means the causes of action in a pleading, if meritorious, would affect title to or the right of possession of a specific real property. (Code Civ. Proc., § 405.4.)

A *lis pendens* may be ordered removed from the record if (1) the complaint does not contain a real property claim [Code Civ. Proc., § 405.31]; (2) the plaintiff cannot establish the probable validity of his claim by a preponderance of the evidence [Code Civ. Proc., § 405.32]; (3) claim has probable validity, but adequate relief for the claimant can be secured by an undertaking [Code Civ. Proc., § 405.33]; or (4) there was a defect in service or filing. (Code Civ. Proc., § 405.23). The party opposing the motion, i.e., the claimant, bears the burden of proof the complaint contains a real property claim and that there is a probability of prevailing on that real property claim. (Code Civ. Proc., § 405.30.)

Analysis

Quiet Title – At issue here is whether Plaintiff has title and the basis of his alleged title. The parties do not dispute that Defendant has legal title to the property, and Plaintiff never had legal title. Rather, Plaintiff claims that he has equitable title.

“The owner of the legal title to property is presumed to be the owner of the full beneficial title. This presumption may be rebutted only by clear and convincing proof.” (Evid. Code, § 662.) “[T]he general rule is that the holder of equitable title cannot maintain a quiet title action against the holder of legal title. An exception exists “when legal title has been acquired through fraud.” In that case, available “remedies include quieting title in the defrauded equitable title holder’s name and making the legal title holder the constructive trustee of the property for the benefit of the defrauded equitable titleholder.” (*Liberty National Enterprises, L.P. v. Chicago Title Ins. Co.* (2013) 217 Cal.App.4th 62, 81, citation omitted.)

Plaintiff states that he and Defendant’s now-deceased husband (Ray) had an agreement that they would use Ray’s name and credit to purchase the property and that “as soon as [Plaintiff] could[, Plaintiff] would put the Property solely in [his] name.” (Cervantes Decl., ¶2.) Plaintiff states he lived in the home from 2007 to 2015, and then from 2020 to February 2025, and he paid the mortgage, taxes, and insurance while he lived there. (Cervantes Decl., ¶¶10-12.) Plaintiff states that when he moved out in 2015, he rented the property to his mother and then a family friend rented the property for three years. (Cervantes Decl., ¶10.) Plaintiff is not clear whether the family friend rented the property from him or from Ray but, because Plaintiff says he paid the mortgage, taxes, and insurance while he lived in the home, Plaintiff shows no evidence that he paid the costs of ownership from 2015 to 2020 and from early 2025 to the present. Plaintiff additionally states that he made more than $100,000 in improvements to the property. (Cervantes Decl., ¶9.)

As to fraud, Plaintiff states that in March 2024, Ray titled the property in his and Defendant’s names without Plaintiff’s knowledge, consent, or permission. (Cervantes Decl., ¶14.) When Plaintiff confronted him about the title, Ray said that he did not put Defendant’s name on the house. (Cervantes Decl., ¶15.) Plaintiff also states that Ray said he would have to talk to Defendant before putting the property in Plaintiff’s name and that Defendant “kept him from cooperating.” (Cervantes Decl., ¶11.)

In addition to his own declaration, Plaintiff submits seven declarations from family members and friends who attest to their familiarity with the agreement and their understanding that Plaintiff owned the property. Many of the declarations say, “I have personal knowledge of, and am familiar with [the] agreement with respect to the Subject Property because I was present for actions taken by [Plaintiff], and for discussions, concerning the Property, involving [Plaintiff,] [Ray,] and various other family members.” (Colunga Decl., ¶2; Stella Aldama Decl., ¶2; Jasso Decl., ¶2; and Rangel Decl., ¶2.)

Here, however, Plaintiff never states he made a promise to always pay the mortgage. He states that Ray asked Plaintiff to put the property in Plaintiff’s name as soon as Plaintiff could. (Cervantes Decl., ¶4.) However, Plaintiff does not state that he could keep that promise and obtain his own financing for the property. Plaintiff states that he paid the mortgage while he lived in the home, but he did not live in the home from 2015 to 2020 and from 2025 to present day.

Defendant states that Plaintiff "was permitted to occupy the property as a family member" and paid the mortgage in lieu of paying rent. (Aldama Decl., ¶10.) Defendant states that Plaintiff voluntarily moved out of the property more than two years ago, and another family member has occupied the property since then under the same arrangement, paying the mortgage directly to the lender. (Aldama Decl., ¶11.) Defendant also states that Plaintiff has not paid the taxes, insurance, or repairs since he moved out. (Aldama Decl., ¶13.) Defendant further states that improvements "were funded by the record owners," i.e., Defendant and her husband, "including insurance proceeds received for covered losses," but Defendant does not specify what those improvements were or how they compare to Plaintiff's alleged improvements. (Aldama Decl., ¶14.)

Plaintiff concedes that he did not live in the house from 2015 to 2020 and from February 2025 to the present, and he only states that he paid the mortgage, taxes, insurance, and repairs while he lived in the house. Defendant presents evidence that other family members paid the mortgage under the same arrangement since Plaintiff moved out, and she and her husband paid for at least some improvements.

Plaintiff will have a high burden to show that his alleged equitable ownership overcomes Defendant's legal ownership and, given that Plaintiff did not live in the home or pay the costs of ownership for more than six years of his alleged ownership, it does not appear Plaintiff can meet his burden of showing a probable validity of claim. (See Code Civ. Proc., § 405.32.)

Constructive Trust – Although not discussed by the parties, constructive trusts generally are defined by Civil Code sections 2223 and 2224. "One who gains a thing by fraud, accident, mistake, undue influence, the violation of a trust, or other wrongful act, is, unless he or she has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it." (Civ. Code, § 2224.) "A constructive trust is an involuntary equitable trust created by operation of law. The essence of the theory of constructive trust is to prevent unjust enrichment and to prevent a person from taking advantage of his or her own wrongdoing." (*Campbell v. Superior Court* (2005) 132 Cal.App.4th 904, 920.) "[A] constructive trust may only be imposed where the following three conditions are satisfied: (1) the existence of a res (property or some interest in property); (2) the right of a complaining party to that res; and (3) some wrongful acquisition or detention of the res by another party who is not entitled to it." (Campbell, supra, 132 Cal.App.4th at p. 920.)

Like in the quiet title cause of action, Plaintiff must show that he has a right to the property and Defendant is not entitled to it. For the reasons discussed above, it does not appear that Plaintiff can meet his burden of showing a probable validity of claim.

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16. *Sanchez v. Silva, et al,* Case No. CIVSB2406108
Motion for Leave to File Third Amended Complaint
8/31/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court is inclined to **GRANT** this unopposed motion for leave to file a Third Amended Complaint (TAC). Plaintiff will have twenty days' leave to file the TAC.

A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Here, the motion and supporting documents indicate no prejudice to Defendant. (Mtn., 5:11-15 [no prejudice and will not delay trial].) Thus, the Court would grant this motion.

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